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Case Name: *Luc Rebboah v. Darrell P. Zazueta, et al.*

Case No.: 24CV445335

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The Court has considered the Application for Determination of Good Faith Settlement (the “Application” filed: Oct. 10, 2025) filed by the settling defendants Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta (the “Zazueta Defendants” or “Settling Defendants”), the Opposition (filed: Nov. 4, 2025) of the non-settling defendants JKL Orchard Park Associates and Laura Rodriguez (the “Non-Settling Defendants”) to the Settling Defendants’ Application, *and* the Non-Settling Defendants’ Motion (filed: Dec. 29 2025) to Contest the Settling’ Defendants’ Application. Having reviewed all these papers and their supporting declarations and exhibits and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court **DENIES** the Application **without prejudice** for reasons the Court will now explain.

I. BACKGROUND AND PROCEDURAL HISTORY

This personal injury action arises from a dog-bite incident that occurred on August 26, 2023, at the Orchard Park Apartment Complex located at 5635 Blossom Gardens Circle, San Jose, California (the “Premises”). Plaintiff Luc Rebboah (“Plaintiff”) was bitten by the Zazueta’s family dog (a Rottweiler named Vader, likely after the character from the *Star Wars* saga) while Plaintiff was collecting his mail at the complex where he resided as a tenant (the “August 26, 2023 incident”). Also tenants at this complex were Defendants Darrell Zazueta and Starr Mendoza-Zazueta.

The incident occurred when while Plaintiff was collecting his mail one night, he came across the Zazueta family pet who was accompanied by Defendant Rose Linda Mendoza-Zazueta. According to Plaintiff, while this dog had a leash attached to him, it was not being held but instead was dragging on the ground. The dog bit Plaintiff on the arm.

Plaintiff filed his Complaint on August 16, 2024 against Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, Starr Mendoza Zazueta, JKL Orchard Park Associates dba Orchard Park Apartments, Conam Management Corporation, Laura Rodriguez, and Does 1 to 50.

On September 24, 2024, the Non-Settling Defendants filed a Cross-Complaint against the Zazueta Defendants asserting Express Indemnity, Total Indemnity, Declaratory Relief, and Apportionment of Fault. The Cross-Complaint alleges that at the time of the incident, which is the subject of Plaintiff’s complaint, Cross-Defendant Darrel

Zazueta was contractually bound by the terms of his lease agreement to indemnify and hold harmless Defendant JKL Orchard Park Associates dba Orchard Park Apartments for injury to a person caused by the negligence of the resident or the resident's guests or invitees.

On October 10, 2025, the Zazueta Defendants filed the present Application for Determination of Good Faith Settlement. On November 4, 2025, the Non-Settling Defendants filed their Opposition. On December 29, 2025, the Non-Settling Defendants filed their Motion to Contest the Application.

The Zazueta Defendants have entered into a settlement agreement with Plaintiff under which Plaintiff Luc Rebboah will receive \$100,000.00, which represents the full policy limits available to Settling Defendants under the policy of Renter's Insurance that they had with American National Property and Casualty. The settlement agreement provides that in consideration of the releases and agreements set forth above and, contingent upon the receipt of an Order from the Santa Clara County Superior Court Determining that said settlement is in Good Faith, (the 'Order'), Releasor shall receive \$100,000.00 (ONE HUNDRED THOUSAND DOLLARS AND ZERO CENTS) which shall be paid as through a draft made payable as follows 'Luc Rebboah and Caputo & Van Der Walde LLP.' The agreement was signed by Plaintiff on August 8, 2025. The settlement is contingent upon a good faith settlement determination under CCP Section 877.6 and a dismissal with prejudice of the Cross-Complaint filed by JKL Orchard Park Associates and Laura Rodriguez against the Zazueta Defendants.

II. FACTUAL SUMMARY

A. The Dog's Ownership and Defendants' Knowledge (Actual or Constructive) of its Prior Dangerous Propensities

The record shows that, at all times relevant, the Zazueta Defendants were tenants and residents at the Orchard Park Apartments and were the lawful owners of their family dog, which they kept in their apartment at the premises. Each of the three Zazueta Defendants has declared ownership of this dog. Specifically, Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta each admit that at the time of the subject incident on August 26, 2023, they were one of the owners of the family dog, Vader.

The record reflects that on or about June 13, 2021, this dog was given a warning by San Jose Animal Control for aggressively chasing children off leash at the Premises. In light of that warning, Plaintiff asserts that *all* Defendants (including the Settling *and* Non-Settling Defendants) had actual *or* constructive knowledge of Vader's violent propensities before the August 26, 2023 incident, and that despite this knowledge by all Defendants, the Zazueta's family pet was allowed to continue to reside at the Orchard Park Apartments without any restrictions.

B. Premises Policies and Management Responsibilities

At all relevant times, this apartment complex did have a policy to not allow dog

breeds considered to be aggressive, including Rottweilers, on the Premises. Vader is a Rottweiler. This policy also requires that all dogs be leashed in the public or common areas of the Premises, and requires each tenant who would like to keep an animal on the Premises to enter into an Animal Agreement, in addition to their lease.

C. Plaintiff's Injuries and Treatment

As a result of the August 26, 2023 incident, Plaintiff suffered injury to the body, as well as shock and injury to the nervous system and person, causing great mental, physical and nervous pain and suffering; the injuries could result in some permanent disability. Plaintiff incurred and will continue to incur medical and incidental expenses.

Discovery shows that the Plaintiff has treated through his health insurance with Kaiser Permanente for a diagnosis of Complex Regional Pain Syndrome, Type I in the right upper extremity and has undergone a stellate ganglion nerve block. Plaintiff claims that as of August 28, 2025, he has medical charges of \$12,849.00 through his treatment with Kaiser and, of that amount, \$8,670.92 plus a deductible of \$575.00 has been paid. But the record does not contain evidence regarding Plaintiff's total-claimed damages for non-economic harm, future medical treatment needs, lost earnings, or other elements of compensatory damages beyond the documented past medical charges.

D. Insurance Coverage and Financial Condition of Settling Defendants

All three Zazueta Defendants declared that the only liability insurance in effect at the time of the subject incident is a policy of Renter's Insurance issued by American National Property & Casualty Company, policy number 04-H-QOJ-234, which affords bodily injury coverage of \$100,000 per occurrence. Each defendant further declared that at the time of the incident, there were no other policies of insurance, including excess or umbrella coverage, with any other company that affords coverage for this incident. The insurance policy declaration page confirms Named Insured(s) and Mailing Address: Zazueta, Darrell; Zazueta, Starr; 5615 Blossom Gardens Circle, Apt. 5615, San Jose, CA 95123-6162, with policy term 12-06-2022 to 12-06-2023 Renewal and Personal Liability (Each Occurrence): \$100,000.

Darrell P. Zazueta's Financial Condition: Darrell declared that from approximately March 2024 to the present, he has resided at 823 Locust Street, San Jose, CA 95110, where he is a tenant and pays monthly rent of \$3,600.00. He stated that he does not own or have any equity in any real property in the State of California or anywhere in the United States, and is not named on any deed or title to any real property. And that he is not the beneficiary of any trust or estate and am not expecting to be named in any will or last testament as a beneficiary.

Darrell is employed as a Sales Manager by SFO Representatives, having been employed since September 2013. He is a full-time employee working forty hours per week and his gross monthly income is \$6,000.00. His annual income, before taxes, does not exceed \$75,000.00.

Darrell further asserts that, despite his income, his checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. His monetary savings do not exceed \$1,000.00. And he does not own any stocks, bonds, mutual funds, or any form of financial investments.

Starr Mendoza-Zazueta's Financial Condition: Starr declared that from approximately March 2024 to the present, she has resided at 823 Locust Street, San Jose, CA 95110, where she is a tenant and pays monthly rent of \$0.00. She does not own or have any equity in any real property in the State of California or anywhere in the United States. She is currently unemployed. She last worked in August 2024 as a cashier and earned approximately \$1,500.00 per month. Her checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. Her monetary savings do not exceed \$1,000.00.

Rose Linda Mendoza-Zazueta's Financial Condition: Rose declared that for approximately 10 years, she has resided at 519 Vineyard Street in San Jose, California, where she is a tenant and pays monthly rent of \$750.00. She does not own or have any equity in any real property in the State of California or anywhere in the United States. She is unemployed. She last worked in April 2025 as a housekeeper and earned approximately \$4,000.00 per month. Her checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. Her monetary savings do not exceed \$1,000.00.

The Court finds the Declaration of each of the Zazueta Defendants to be credible and well supported.

III. LEGAL STANDARD

California Code of Civil Procedure section 877.6 establishes the procedure for determining whether a settlement has been made in good faith. (Code Civ. Proc., § 877.6, subd. (c).) A determination that a settlement was made in good faith bars any other joint tortfeasor from any further claims against the settling tortfeasor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (*Id.*)

The standard governing good faith determinations is set forth in well-known case of *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. Under *Tech-Bilt*, the Court evaluates whether the settlement amount falls within the reasonable range of the settling tortfeasor's proportionate share of comparative liability for the plaintiff's injuries. (*Id.*) The court considers a rough approximation of the plaintiff's total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among multiple plaintiffs, a recognition that a settlor should pay less in settlement than if found liable after trial, the financial conditions and insurance policy limits of settling defendants, and the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. (*West v. Superior Court* (1994) 27 Cal.App.4th 1625, 1631.)

The party seeking the good faith determination bears the initial burden of making a prima facie showing of good faith. (C.C.P. § 877.6(d).) Once that showing is made, the burden shifts to the party opposing the application to demonstrate that the settlement is not in good faith. (*Id.*) The moving party must furnish sufficient information to permit a meaningful proportionality analysis and must provide a rational evidentiary basis rather than conclusory assumptions. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 165.)

The Court evaluates the settlement on the basis of information available at the time of the settlement, not with the benefit of hindsight. (*North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) The inquiry requires only a rough approximation of damages based on information available at the time of settlement, not complete proof of all damages. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

Payment of full available policy limits is strong evidence favoring good faith but is not a per se rule and does not by itself satisfy *Tech-Bilt*. (*Ford Motor Co. v. Schultz* (1983) 147 Cal.App.3d 941, 943. The court must also consider the settling tortfeasor's potential indemnity liability to non-settling defendants. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 162.) The trial court's good faith determination must consider the settling tortfeasor's potential liability for indemnity to a co-tortfeasor, as well as liability to the plaintiff. (*Id.*)

IV. ANALYSIS OF THE MOTION

A. The Zazueta Defendants as of now have not carried their initial burden of establishing a prima facie showing of good faith under *Tech-Bilt*.

1. Financial Constraint and Policy Limits Exhaustion

To be sure, the Zazueta Defendants have made a substantial showing that they have exhausted their available insurance coverage and possess virtually no personal assets beyond policy limits. The undisputed evidence establishes that the \$100,000 settlement represents the full and only available insurance coverage, with no excess or umbrella policies. And each of their financial declarations demonstrate that each of the three Zazueta Defendants maintains minimal liquid assets, no real property equity, and limited income or unemployment.

This showing is significant and weighs in favor of good faith. Payment of full policy limits combined with genuine insolvency or underinsurance is a recognized mitigating factor. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

2. The Application's Deficiency: Insufficient Proportionate-Share Foundation

Despite the financial-constraint showing, the Application fails to provide the

foundational evidence necessary to evaluate whether the \$100,000 settlement falls within the reasonable range of the Zazueta Defendants' proportionate share of comparative liability. And this deficiency here means that the Zazueta Defendants have not made a prima facie showing of good faith settlement.

a. Inadequate Damages Approximation

The only concrete evidence of Plaintiff's damages before the Court now is the \$12,849.00 in documented past medical charges through Kaiser Permanente. The Application and its supporting papers provide no evidence regarding non-economic damages for pain and suffering, future medical treatment needs, lost earnings or diminished earning capacity, or permanent disability.

The Complaint alleges injuries that could result in some permanent disability and that Plaintiff incurred and will continue to incur medical and incidental expenses. The medical record shows that Plaintiff has been diagnosed with Complex Regional Pain Syndrome, Type I, and has undergone a stellate ganglion nerve block—an invasive pain-management procedure that suggests significant ongoing injury. A Complex Regional Pain Syndrome diagnosis with such treatment implies a realistic total recovery materially above the \$12,849 in documented past medical charges.

Tech-Bilt does not require exhaustive proof of damages, but it does require sufficient information for the Court to make an educated estimate of the plaintiff's total projected recovery. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.) A single figure representing past medical charges, with no developed showing on non-economic components or projected future costs, falls short of that threshold. Without a rough approximation of total damages, the Court cannot evaluate whether \$100,000 represents a reasonable proportion of the Zazueta Defendants' share.

b. Undeveloped Comparative-Fault Analysis

The Application provides no developed comparative-fault analysis. The record establishes that the Zazueta Defendants, as owners of their family dog Vader, are subject to strict liability under Civil Code section 3342. The incident occurred when one of the Zazueta Defendants allowed Vader's leash to drag on the ground in a common area and failed to restrain the dog when it attacked Plaintiff.

The Non-Settling Defendants, as property owner and property manager, contend that they are at most secondarily liable under a negligence theory and that any such liability would require proof of actual knowledge of the dog's dangerous propensities. The record does show that Vader had received a warning from Animal Control in 2021 for aggressively chasing children off-leash at the premises, and that the complex maintained policies prohibiting aggressive dog breeds and requiring leashing. Whether this evidence establishes actual *or* constructive knowledge sufficient to support independent negligence liability against the Non-Settling Defendants, and if so, what proportion of fault should be attributed to them compared to the strict-liability dog owners, raise disputes of fact that

remain unresolved—which most likely would have to be resolved by a jury unless all these parties (including *all* the settling and non-settling parties) settle this case first.¹¹

The plain fact remains that the Application, as it now stands, supplies no framework for allocating fault among the Settling and Non-Settling Defendants. For instance, *if* the Zazueta Defendants bear 80 to 100 percent of the fault, \$100,000 might represent a reasonable settlement discount given their financial constraints. But *if* they bear 40 to 60 percent, the settlement might be inadequate. *If* they bear a lesser share, it would be grossly insufficient. Without evidentiary foundation to support an allocation, the Court simply cannot tell and cannot perform the proportionate-share analysis *required* by *Tech-Bilt*.

c. Lack of Indemnity-Exposure Analysis

The Application also lacks any substantive analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants on their Cross-Complaint. The Cross-Complaint alleges that Darrell Zazueta was contractually bound by his lease to indemnify the property owner for injuries caused by the negligence of the resident or the resident's guests or invitees.

Tech-Bilt expressly requires the Court to consider the Settling Defendants' potential indemnity liability to co-defendants as part of the proportionate-share analysis. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 162; *Fennessy v. Altoonian*, No. C098976 (Cal. Ct. App. 3rd 2025).) The Application does not address this element in any substantive way, and the Court cannot supply the analysis by inference in the Applicant's favor.

d. Conclusion that prima facie showing of good faith settlement not made under *Tech-Bilt*

The Zazueta Defendants have established genuine financial constraint and exhaustion of available insurance. These facts are relevant and weigh in favor of good faith. *But* they have not carried their initial burden as required under *Tech-Bilt* of showing that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability. Based on the current record, the Court cannot tell whether that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability because the Application lacks:

- (1) a sufficient approximation of Plaintiff's total projected damages,
- (2) a developed comparative-fault allocation, and

¹¹ As the Court will note further in the final paragraph of this Order below, the Undersigned Judge expects and encourages that a settlement among *all* the parties here would be worked out soon to resolve this unfortunate case fairly and amicably for all.

(3) analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants.

Because the Settling Defendants' required prima facie showing fails on these foundational elements, the Court need not reach the question whether the Non-Settling Defendants have carried their burden to prove the settlement is out of the ballpark. (C.C.P. § 877.6(d).)

Accordingly, the Application is **DENIED** *without prejudice*. Specifically, the Court gives the Zazueta Defendants leave to file an Amended Application for Determination of Good Faith Settlement within 60 days of today *if* they can provide an adequate evidentiary record addressing the deficiencies identified above.

As the Court is thus giving the Zazueta Defendants a full and fair chance to remedy the deficiencies identified above in an Amended Application, which will likely trigger another round of motion practice on the Determination of Good Faith Settlement as set forth in an Amended Application, the Court now in the interests of judicial efficiency and economy, and for the benefit of all parties and counsel, will address two additional important issues raised in the current Application and Opposition papers.

B. The Court Rejects the Zazueta Defendants' Argument that the Policy-Limits Payment Establishes Good-Faith *Per Se*.

The Zazueta Defendants' Application relies heavily on a theory that payment of full available policy limits, combined with their demonstrated inability to pay additional personal assets, should itself constitute good faith.

The Court respectfully rejects that per se approach. Payment of full policy limits is a substantial and relevant *Tech-Bilt* factor, particularly where accompanied by genuine financial constraint, *but* it does not establish good faith per se. (*Ford Motor Co. v. Schultz* (1983) 147 Cal.App.3d 941, 943; *North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) The dispositive inquiry remains whether the settlement falls within a reasonable range of the settling tortfeasor's proportional share. (*West v. Superior Court* (1994) 27 Cal.App.4th 1625, 1631.)

And as explained above, the deficiency in the present Application is not that the Zazueta Defendants paid their full policy limits; it is that the ballpark question itself remains unanswered and unanswerable now because the record (as now presented to the Court) lacks sufficient information on damages and comparative fault to permit that evaluation.

C. The Court Rejects the Non-Settling Defendants' Argument that Strict Liability Precludes any Settlement Discount for the Settling Defendants under *Tech-Bilt*.

On the other hand, the Non-Settling Defendants argue that the Zazueta Defendants' status as dog owners subject to Civil Code section 3342 strict liability,

combined with their alleged near-exclusive fault, renders the settlement amount grossly disproportionate to the Zazueta Defendants' share of liability and thus inconsistent with good faith.

The Court respectfully rejects that argument that strict liability per se precludes a settlement discount in the Zazueta's Defendants favor. *Tech-Bilt's* proportionate-share inquiry does not turn on whether liability is strict or fault-based; rather, it asks whether the settlement falls within a reasonable range of the settling defendants' comparative liability for the underlying injury. (*North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) Even a defendant subject to strict liability may settle for less than full exposure if circumstances such as insolvency, underinsurance, speculative damages, or remoteness of ultimate loss justify the reduction. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

Strict liability here does not displace the *Tech-Bilt* comparative-fault inquiry; it means only that fault attribution may tilt (perhaps heavily) toward the strict-liability defendant. *If* the Zazueta Defendants do bear exclusive or near-exclusive liability, the proportionate-share analysis becomes more stringent, but a modest settlement discount may still be justified here by the genuine financial constraints and underinsurance as the Zazueta Defendants assert.

So the difficulty and problem in deciding now that this settlement is in good faith is *not* that the Zazueta Defendants are strictly liable. The difficulty is that the comparative-fault allocation between the strict-liability dog owners and the property-management defendants remains undeveloped in the current Application papers. The record does show some basis for potential independent negligence against the Non-Settling Defendants based on the 2021 Animal Control warning, their actual *or* constructive knowledge of Vader's dangerous propensities, and their failure to enforce lease provisions. And while that does not establish that the Non-Settling Defendants' negligence is comparable to the Zazueta Defendants' conduct, it also likely precludes a finding that the Non-Settling Defendants are zero-percent liable.

V. ORDER & CONCLUSION

For the reasons stated above, the Court **ORDERS** as follows:

The Application for Determination of Good Faith Settlement filed by the Settling Defendants Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta is **DENIED without prejudice**.

This denial is based on the Zazueta Defendants' failure to carry their initial burden under *Tech-Bilt* of establishing a prima facie showing that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability. Specifically, the Application lacks:

- (1) a sufficient approximation of Plaintiff's total projected damages,

(2) a developed comparative-fault allocation, or

(3) an analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants.

That said, the Zazueta Defendants have leave to file an Amended Application for Determination of Good Faith Settlement within 60 days of today *if* they can provide an adequate evidentiary record addressing the deficiencies identified above.

Final note. Before the parties embark on yet another round of motion practice on whether the Court should grant or deny the (expected) Amended Application for Determination of Good Faith Settlement, the Court expects and encourages *all* parties—including the Plaintiff, Settling Defendants, *and* Non-Settling Defendants—to meet and confer together in good faith within 30 days of today to try to reach a fair settlement among all parties. Having spent a great deal of time carefully reviewing all the papers and the record in this case, the Court has no doubt whatever that *all* the Defendants here (Settling and Non-Settling alike) sincerely regret that Plaintiff was injured in the unfortunate August 26, 2023 incident by the Zazueta's family pet at the apartment complex, would like to make Plaintiff whole, and would like to move forward peacefully and productively together in this community. And while the Court cannot order the parties to settle this case, the Court under these facts and circumstances would encourage them all to discuss doing so soon—fairly, respectfully, and in good faith.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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